

Petitioner seems to be conflating a petition to request approval of the sale of all or a portion of a structured settlement with a request to advance or cash out future payments on an annuity purchased as part of a structured settlement for her benefit.

Notably, it appears Petitioner has previously sold portions of her annuity. (See *In re Petition of Symetra Assigned Benefits Services* FCS034828; *Cynthia Campbell v. Symetra Assigned Benefits Services* FCS030497; *Cynthia Campbell v. Symetra Assigned Benefits Services* FCS032167.)

The court is unaware of any legal authority to compel an insurance company to advance payments on an annuity contract in which it agreed in exchange for purchase of the annuity to make specific periodic payouts over a specific period of time.

Petitioner may wish to seek legal advice.

MCNAMARA v. REVEILLE FARMS, ET AL.
Case No. CU24-02198

Motion to Deem Matters Admitted by Defendant RICHARD MATHIES

Tentative Ruling:

Plaintiff MCNAMARA's unopposed Motion to Deem Matters Admitted in REQUEST FOR ADMISSIONS (Set Two) by Defendant RICHARD MATHIES is GRANTED. Defendant RICHARD MATHIES shall be deemed to have admitted all propounded Requests for Admission (Set Two).

While the caption of Plaintiff's motion requests monetary sanctions, the body of Plaintiff's motion does not.

The proposed order lodged with the court will be processed forthwith.

EDEN v. AU ENERGY, LLC, ET AL.
Case No. CU24-04941

Motion for Entry of Consent Judgment
TENTATIVE RULING

Plaintiff EDEN's motion for approval of a consent judgment pursuant to Proposition 65 is GRANTED.

Under Proposition 65, "No person in the course of doing business shall knowingly and intentionally expose any individual to a chemical known to the state to cause cancer or reproductive toxicity without first giving clear and reasonable warning to such individual, except as provided in Section 25249.10." (Health and Safety Code § 25249.6)

A private person may bring an action to enforce Proposition 65 in the public interest after notice to public enforcement agencies. (Health and Safety Code § 25249.7(d).) Any settlement of such an action must be submitted to the court for review and approval to ensure protection of public interest and that the settlement is fair and reasonable. (Health and Safety Code § 25249.7(f)(4); *Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 46, 49.)

In considering the settlement, the court must also make all of the following findings under Health and Safety Code § 25249.7(f)(4):

(A) The warning that is required by the settlement complies with Proposition 65;

(B) The award of attorney's fees is reasonable under California law; and

(C) the penalty amount is reasonable based on the Health and Safety Code § 25249.7(b)(2) criteria.

Here, Plaintiff alleges that Defendant AU ENERGY, LLC. failed to provide requisite warning notices at two of its gas stations located in Solano County. This case settled, along with three other actions in other counties, encompassing a total of 12 or 120 gas stations owned by AU ENERGY, LLC.

Defendant has agreed to provide notices consistent with the safe harbor language established by the State of California. (See Title 27, CCR, §§ 25607.26, 25607.27.) Defendant agrees to pay a penalty of \$3,000 per gas station. Defendant agrees to pay Plaintiff \$15,000 inclusive of attorney's fees and costs. Costs were \$955.10, leaving an award of attorney's fees of \$14,044.90 which results in a lodestar hourly rate of \$369.60 based upon 38 hours expended.

The court finds the settlement is reasonable and meets each of the statutory criteria.

JEMERSON v. LIGHTHOUSE AT BRIDGEPORT OWNERS ASSN.
Case No. CU24-08429

Motion for Leave to File Amended Answer

TENTATIVE RULING

CRC 3.1324(a)(1) requires a party moving for leave to file an amended pleading to include a copy of the proposed amended pleading.

While the declaration filed in support of the motion purports to attach both a copy of the original answer and the proposed first amended answer, neither were actually attached to the motion papers filed with the court.

In addition, Plaintiff failed to include notice of the court's tentative ruling system as required by Local Rule 3.9(d).